PLANNING &
DEVELOPMENT
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: PLTA-26-4 / Amending Section 6.08.020 of Municipal Code – Livestock prohibitions exceptions
Date: October 12, 2026

Background:
The item for consideration is a Municipal Code Amendment. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 10/12/2026
- Public Services Committee 10/19/2026
- Second reading 10/26/2026
- Public Services Committee 11/2/2026
- Third and final reading 11/9/2026

Staff Summary:
The proposed amendment would change subsection F of 6.08.020 of Municipal Code to allow for livestock in situations where a property receives conditional use or site plan approval, and to clearly allow continued livestock operations upon annexation. This is one of four agriculture-related ordinances.

Public Comment
As of the creation of this memo (October 7, 2026), Staff has received no inquires or comments from the public related to the proposed amendment. The four Ordinances combined have received 1,098 views on the PublicInput page and 10 comments. Comments received do not address this proposed amendment directly. Comments are attached, inlcuding a list of requests to amend other sections of 6.08 (though none of the requested changes are to 6.08.020).

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Comments

APPROVED as to form only:
By John Brodie at 2:00 pm, Sep 21, 2026

ORDINANCE NO. _____

ENTITLED: " AN ORDINANCE AMENDING SECTION 6.08.020 OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO REVISE EXCEPTIONS TO RESTRICTIONS ON KEEPING LIVESTOCK WITHIN THE CITY."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 6.08.020 of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the Municipal Code of the City of Cheyenne, Wyoming, is amended read:

6.08.020 Keeping or slaughtering of certain animals; restrictions within city; exceptions.

A. Except as provided by this section or otherwise provided in this title, no person may keep or slaughter within the city any livestock, birds or nonhuman primates.

B. The prohibition against the keeping of livestock, birds and nonhuman primates shall not apply to female chickens as provided under subsection (C) of this section, to goats used for weed and pest control purposes in accordance with subsection (F) of this section, or to properly licensed and permitted rodeos, fairs, circuses, carnivals, parades and other public exhibitions or entertainment events.

C. It shall be unlawful to keep, possess or otherwise maintain live male chickens anywhere in the city of Cheyenne. Notwithstanding, the keeping, possessing or maintaining of live female chickens within the city of Cheyenne shall be permitted in accordance with subsection (D) of this section and subject to the following requirements:

1. The keeping, possession or maintaining of a female chicken shall be permitted under this section only when kept, possessed or otherwise maintained upon an eligible lot. Every female chicken shall be clipped to prevent the chicken from escaping from the eligible lot. It shall be unlawful to possess, keep or maintain chickens in a dwelling unit of any kind;

2. It shall be unlawful to keep, possess or otherwise maintain a combined total of more than six female chickens on any eligible lot within the city;

3. During daylight hours, every female chicken shall have access to a coop as provided by paragraph (4) of this subsection and to a pen surrounding the coop. The pen shall be totally enclosed to prevent escape and to protect the chickens from predators. Female chickens shall be enclosed within the coop each night from sundown to sunrise;

4. Female chickens shall be confined within a covered, predator-resistant coop that has predator-resistant roofing and flooring, which shall be located in the backyard or rear

portion of the eligible lot. The coop shall be adequately ventilated and easily accessed and otherwise maintained and shall provide for at least three square feet of space for each female chicken. The coop and pen shall be routinely cleaned and maintained to avoid attracting excessive insects or vermin or otherwise becoming a nuisance. The coop shall further comply with Section 6.08.140 of this chapter, with all applicable provisions of titles 8 and 15 of the city code and with applicable provisions of the Unified Development Code. No coop shall have an enclosed floor space exceeding sixty (60) square feet and no portion of any coop or pen shall exceed a height of seven feet from the ground surface at any point;

5. During daylight hours, female chickens may be permitted to roam outside the pen required under this section and within the backyard or rear portion of the eligible lot. A female chicken may only roam in a backyard if they are confined within an area enclosed by a solid fence not less than six feet in height, which fence shall comply with applicable requirements of the Unified Development Code;

6. It is unlawful for any female chicken to be at large and any female chicken found at large may be impounded by the animal control authority. Any female chicken not reclaimed within two business days may be euthanized;

7. Female chickens shall be provided with sufficient potable liquid water at all times. Chicken feed shall be stored in secured containers to prevent access by mice, rats and other vermin;

8.No female chicken may be killed within the city by or at the direction of the owner or keeper thereof, except pursuant to a lawful order of the state or county health officer, for the purpose of euthanasia when surrendered to a licensed veterinarian or as otherwise expressly permitted by law; and

9. The carcass of a deceased female chicken shall be disposed of in accordance with Section 6.08.130 of this chapter.

D. In addition to the requirements imposed under subsection (C) of this section, the keeping, possession or maintaining of a female chicken upon an eligible lot shall be subject to the following:

1. All lot owners, including any purchaser under a contract for deed, and all adult residents of the eligible lot, including those residing in any accessory dwelling unit on the same lot, shall consent in writing to keeping female chickens on the eligible lot. Consent under this paragraph shall be effective and may be revoked in the same manner as specified in paragraph (3) of this subsection;

2. No female chicken may be kept on an eligible lot unless all owners and all adult residents of adjacent lots consent in writing. As used in this paragraph, "adjacent lot" means any lot that touches an eligible lot at any point, including corner to corner touching. A lot separated from the eligible lot only by an easement that does not provide

for public vehicular, bicycle or pedestrian access, shall be deemed an adjacent lot for the purposes of the consent requirement of this paragraph. In addition, rights-of-way and other public access areas that are adjacent to an eligible lot and that may be lawfully used for public vehicular, bicycle or pedestrian access, including, but not limited to, streets, alleys, sidewalks, greenways, parks, plazas, parking facilities and playgrounds shall not be considered to be adjacent lots, provided however, that no portion of a coop or pen may be located within six feet of an adjacent right-of-way or other public access area; and

3. The consent of an adjacent owner or an adult resident shall be irrevocable for a period of one hundred eighty (180) days from the date consent is given in writing. After the expiration of one hundred eighty (180) days, the consent provided by an adjacent lot owner or adult resident may be revoked by providing written notice of revocation to the record owner(s) of the eligible lot and to any person keeping female chickens on the eligible lot that was the subject of the original consent. Upon receiving written notice of the revocation of consent under this paragraph, the owners and occupants of the eligible lot shall have sixty (60) days to remove all female chickens.

E. This section shall not supersede or affect the validity or enforceability of private lot restrictions, restrictive covenants, homeowners' association agreements or any other agreement or arrangement that may limit or prohibit the keeping of female chickens.

F. This section shall not apply to: ~~in areas of the city zoned agricultural, to livestock brought into the city for purposes of being shipped out of the city, to animals brought into the city to receive veterinary care, to animals impounded within or on the grounds of any animal shelter facility designated by the city of Cheyenne or to goats that are properly permitted and contracted by the city of Cheyenne for weed and pest control purposes.~~

1. Areas of the city zoned AG, AR, or RR;

2. Property that has an approved conditional use or site plan for a use which specifically includes livestock operations as part of the approval;

3. Areas where agriculture or grazing was lawful within the year prior to annexation or change in zoning;

4. Livestock brought into the city for purposes of being shipped out of the city:

5. Animals brought into the city to receive veterinary care;

6. Animals impounded within or on the grounds of any animal shelter facility designated by the city of Cheyenne; or

7. Goats that are properly permitted and contracted by the city of Cheyenne for weed and pest control purposes.

G. The city/county health officer may issue an order prohibiting the keeping of any animal which poses a health hazard to the general public pursuant to city ordinances, or state and federal laws pertaining to public health.

H. As used in this section, "eligible lot" means any lot that contains no more than one detached single family residential unit wherein at least one adult person resides who shall be responsible for compliance with the provisions of this chapter. An "eligible lot" also includes an accessory dwelling unit approved under the Unified Development Code.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

_____
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

_____
KYLIE SODEN, CITY CLERK

Published:_____
Wyoming Tribune-Eagle

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10/5/2026

The Honorable Mayor Collins and Members of the Cheyenne City Council
c/o Chief of Staff Amber Ash
2101 O'Neil Avenue
Cheyenne, WY 82001

RE : Wy Fresh Farms/David and Tommie Kniseley Annexation

Dear City of Cheyenne:

In anticipation of the November 9, 2026 vote on the Third and Final Reading of the Annexation Ordinance which may incorporate WyFresh Farms ("Farm") into the City of Cheyenne, we are asking that the following issues be addressed in a comprehensive manner before that meeting.

The following are the items that need to be addressed. We want to work cooperatively with the City to seek urban farm definition and ordinances that support WyFresh Farms and allow it to continue as a working farm with farmstand and to promote future growth of the Farm. We look forward to following the city's directive that "the City's intent is to allow WyFresh to continue to operate, expand within code and thrive as an agricultural enterprise within the city limits."

1) An Ordinance that clearly defines Urban Farm and includes the language the Right to Farm Act specifically stating that farm operations are not considered a public or private nuisance as long as the farm operation conforms to generally accepted agricultural management practices. This Ordinance shall include livestock (as defined in W.S. 11-6-302(a)(vi), guardian dogs, terrier dogs for rodent control, barn cats, and other farm animals. It should also provide for expansion within the boundaries of the annexed property.
2) An Ordinance that permits the use of installation of electric fence on the property which may be constructed in a manner regarding the size, structure and placement which will keep predators at bay.

3) An Ordinance which allows for the annual movement of temporary structures including but not limited to caterpillar tunnels, hoop houses and low tunnels used for growing products on the property without further permitting during any given year.
4) An Ordinance that includes the Farmstand's continued operation and does not unreasonably limit the number of customers or vehicles that may access the Farmstand per year.
5) Ordinances which modify the need to clean trash on the borders, especially those borders where the trash comes from outside the boundaries of WyFresh's property.
6) City of Cheyenne commits to conducting drainage studies to deal with the drainage that is coming from offsite improvements onto the WyFresh property which damages the fences and the land.
7) City of Cheyenne completing the work on the City damaged fences on the east side of the property as well as the southwest of the property. WyFresh would like to have this matter addressed promptly in accordance with the offer and response that was made by Doug Klahn in February. (see attached). WyFresh would like to partner with the City for additional fencing to ameliorate the problems with not being able to use firearms to fight predators.
8) City of Cheyenne installing barriers to prevent vehicles from causing damage to the fences on the property.

We are asking that drafts of the pertinent ordinances and code be provided by mid-June to ensure that they could be passed in time for WyFresh to believe that the true meaning of Urban Farm is captured and that the rights that they have as a farm are being preserved. We understand from some of our meetings and representations made at City Council meetings and Committee hearings, that the language for most of these issues have already been drafted.

We look forward to working with you cooperatively to make annexation a favorable choice for WyFresh farms.

Respectfully submitted,

Gay Woodhouse

Request for Amendments to Rules Regarding Agriculture
10/05/2026
WY Fresh Farm, 200 Walterscheid Blvd, Cheyenne

Amend 6.08.090 Add C. = "This section shall not apply to any working farm."

Amend 6.08.110 Add "except as provided by WY Statute 11-44-103"

Amend 6.08.030 C Add #5 Livestock Guardian Dogs, Rodent Control Dogs and Barn Cats

Amend 6.08.070 Add "This section shall not apply to any Livestock Guardian Dog."

Amend 8.60.035 Add "This section shall not apply to any working farm."

Amend 8.60.030 Add "except as is consistent with WY Statute 11-44-103"